

Question:

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A son owed a creditor \$5,000. The son's father contacted the creditor and told him that he wanted to pay the son's debt. The father signed a document that stated the father would pay the son's debt at a rate of \$500 a month for 10 months. The creditor made no written or oral commitment to forbear to sue the son to collect the \$5,000 debt, and the father made no oral or written request for any such forbearance. For the next five months, the father made and the creditor accepted the \$500 monthly payments as agreed. During that period, the creditor, in fact, did forbear to take any legal action against the son. However, the father then informed the creditor that he would make no further payments on the debt. Which of the following is the most persuasive argument that the father is liable to the creditor under the terms of their agreement?

Options:

A. The father's promise and the creditor's reliance thereon, if proved, gave rise to a valid claim by the creditor against the father based on the doctrine of promissory estoppel.

B. Because it was foreseeable that the father's promise would induce the creditor to forbear taking any action against the son, such forbearance was, as a matter of law, a bargained-for consideration for the father's promise.

C. The father's five payments to the creditor totaling \$2,500 manifested a serious intent on the father's part to be contractually bound, and such manifestation is generally recognized as an effective substitute for consideration.

D. By assuming the antecedent debt obligation that the son owed to the creditor, the father became a surety whose promise to the creditor was

enforceable, since it was in writing and supported by adequate consideration.